INTELLECTUAL PROPERTY OWNERSHIP CONFIRMATION AND NON-EXCLUSIVE COMMERCIAL LICENCE AGREEMENT

Execution draft dated 23 July 2026

Effective date: 1 August 2026

> This instrument must be signed in the two separate capacities shown in the execution blocks. Oark Limited's director signature must be witnessed in accordance with section 37(2)(b) of the Companies Act, 2015. The related sole-member consent and director record should be executed at the same time. Do not backdate any signature.

PARTIES

1. **Charles Njogu Kabui**, National ID No. 29393333, of MPost address 0707115007-00100, Nairobi GPO, Kenya, email mckabue@gmail.com (the **Licensor**, **Owner**, or **Charles**); and
2. **Oark Limited**, company number **PVT-AAADAM3**, a private company limited by shares incorporated in Kenya on 23 February 2017, of Kenyatta Avenue, opposite the GPO Building, Nairobi 00100, Kenya, email oarklimited@gmail.com (the **Licensee**, **Company**, or **Oark**).

The Licensor and the Licensee are each a **Party** and together the **Parties**.

BACKGROUND

A. The Licensor personally conceived and began creating the ToKnow product on or about 4 May 2024 and the Blober product on or about 20 September 2025. The Licensor represents that he did so as personal projects, on his own time, with his own resources, and not as work commissioned or funded by Oark.

B. Oark existed before either product was created. Oark did not employ the Licensor or any contributor to create either product, did not pay development remuneration, and did not acquire the Products under any written assignment.

C. For administrative convenience, some domains, infrastructure accounts, public notices, receipts, and payment arrangements have used Oark's name, email address, bank account, or merchant accounts. The Parties wish to correct any resulting ambiguity without pretending that an account label, payment route, website footer, or operational role by itself transfers copyright or beneficial ownership.

D. Before the Effective Date, the Licensor allowed Oark to operate or refer to the Products informally and without a royalty. The Parties wish to document that limited historic permission and replace it prospectively with this Agreement.

E. Oark wishes to commercialise each Product as a separate business line. The Licensor is willing to grant Oark a worldwide, non-exclusive, restricted, and terminable licence while retaining all ownership and freedom to use, improve, assign, sell, or license the Owner Assets to any other person.

F. The Licensor is willing to grant the Licence without a royalty or other licence fee. Oark avoids the cost of acquiring the Owner Assets, may retain all Product revenue subject to its own costs and liabilities, and assumes responsibility for commercial operation. The Parties consider that structure beneficial to Oark and administratively proportionate for a company with one member and one director.

G. The Parties intend this Agreement to distinguish property owned by the Licensor from Oark's own contracts, money, receivables, business records, personal data, merchant accounts, and limited contractual licence rights. They do not intend to defeat creditors, evade tax, mislead customers, or contract out of mandatory law.

The Parties agree as follows.

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement:

Affiliate means a person that directly or indirectly controls, is controlled by, or is under common control with a Party. Control includes the direct or indirect power to direct management or policies, whether through ownership, contract, or otherwise.

Blober means Product A identified in Schedule 1.

Brand Assets means the names BLOBER, BLOBER.IO, TOKNOW, TOKNOW.AI, their logos, get-up, taglines, social identifiers, trade dress, unregistered marks, registered marks if any, applications, associated goodwill attributable to the Licensor's Brand Assets, and confusingly similar variants, but excludes Oark's corporate name and Oark's own corporate marks.

Business Day means a day other than Saturday, Sunday, or a public holiday in Kenya.

Company Materials means Oark's money, bank accounts, merchant and payment-processor accounts, tax records, accounting records, customer contracts, customer support records, invoices, statutory records, Oark corporate marks, and Personal Data controlled by Oark. Company Materials do not include Owner Assets merely because they are stored in, accessed through, or labelled with an Oark account.

Confidential Owner Material means Source Code, credentials, unreleased builds, signing keys, non-public architecture, security information, roadmaps, and other non-public Owner Assets. It excludes material that the Licensor has lawfully released to the public without a confidentiality restriction.

Effective Date means 1 August 2026, provided that the Agreement has by then been duly executed. If it is executed after that date, it takes effect when last duly executed and is not backdated.

End User means a customer that obtains a Product solely for its own internal or personal use and not for redistribution, resale, white-labelling, timesharing, service-bureau use, or incorporation into another commercial product.

Existing Downstream Rights means rights validly granted before termination to an End User under an Oark customer agreement, and rights validly granted before the Effective Date under an Existing Open Licence.

Existing Open Licence means a public or open-source licence identified in Schedule 4, but only to the extent that the licence was validly applied to and conveyed with a particular copy or version. A package metadata field alone is not an admission by either Party that every file in a repository was licensed on that basis.

Improvement means a modification, translation, adaptation, bug fix, patch, upgrade, update, new release, extension, derivative work, configuration, documentation change, design change, localisation, model, dataset structure, prompt, workflow, connector, or other development relating to a Product or Owner Asset.

Insolvency Event means, in relation to Oark, an administration or liquidation application or order, appointment of an administrator, provisional liquidator, liquidator, receiver, or similar office-holder, a voluntary liquidation resolution, a general arrangement with creditors, cessation of business, inability to pay debts within the meaning of applicable law, or an analogous event in any jurisdiction.

Intellectual Property Rights means all present and future rights anywhere in the world in copyright and related rights, database rights, trade marks and service marks, trade names, domain names, designs, patents and utility models, inventions, trade secrets, confidential information, know-how, goodwill and passing-off rights, and all applications, registrations, renewals, extensions, causes of action, and equivalent rights, in each case to the extent recognised by law.

Licence means the licence expressly granted in clause 4 and no other right.

Licensed Marks means the Brand Assets that the Licensor authorises Oark to use for a Product from time to time.

Owner Assets means the Licensor's original material identified in Schedules 1 and 2, the Brand Assets, Owner Infrastructure, and Improvements owned by or validly assigned to the Licensor. Owner Assets expressly exclude Third-Party Materials and Company Materials.

Owner Infrastructure means the domains, repositories, organisation-level source-control rights, root cloud or deployment rights, signing keys, and other infrastructure specifically identified as Licensor-owned in Schedule 3. It does not include an Oark bank account, merchant account, payment-processor contract, customer account, or any infrastructure not specifically identified as Licensor-owned.

Personal Data has the meaning given in the Data Protection Act, 2019.

Product means Blober or ToKnow separately. **Products** means both of them, but does not merge them into one asset, product, business, licence, or accounting unit.

Source Code means human-readable source code and its repository history, build scripts, schemas, configuration, tests, and technical documentation, excluding Third-Party Materials.

Territory means the world.

Third-Party Materials means code, libraries, packages, fonts, images, datasets, models, text, APIs, platform services, captured responses, and other material in which a person other than the Licensor owns or controls rights, including open-source software and material identified in Schedules 1, 2, and 4.

ToKnow means Product B identified in Schedule 2.

1.2 Interpretation

1. A reference to a statute includes amendments, replacements, regulations, and re-enactments in force from time to time.
2. **Including** and similar words do not limit what precedes them.
3. A person includes an individual, company, partnership, authority, trust, and other legal or commercial entity.
4. Headings do not affect interpretation.
5. A duty not to do something includes a duty not to permit, assist, or cause it.
6. If a mandatory law conflicts with this Agreement, the mandatory law prevails only to the extent of the conflict, and clause 19.8 applies.

2. HISTORIC PERMISSION AND NO BACKDATING

2.1 Historic permission

The Licensor confirms that, from the first date on which Oark used a Product through 31 July 2026, Oark had the Licensor's personal, royalty-free, non-exclusive, non-transferable, and revocable permission to use that Product for Oark's own operations and sales.

2.2 Scope and end of historic permission

The historic permission:

1. did not assign, sell, transfer, charge, or vest any Owner Asset in Oark;
2. did not authorise Oark to claim ownership;
3. did not give Oark exclusivity, source-code ownership, or a right to grant reseller, OEM, or white-label rights;
4. did not alter any valid Existing Downstream Rights; and
5. ends when this Agreement takes effect.

2.3 Prior royalty release

In consideration of Oark entering into and complying with this Agreement, the Licensor releases Oark from contractual claims for royalties solely in respect of authorised use before the Effective Date. This release does not waive fraud, misuse outside the historic permission, tax obligations, Personal Data obligations, customer liabilities, or a third party's rights.

2.4 No backdating or false record

This Agreement records present acknowledgments and creates prospective rights. It does not state that it was signed, approved, invoiced, stamped, or effective before the true date on which the relevant act occurred.

3. OWNERSHIP, CONFIRMATION, AND RESERVATION OF RIGHTS

3.1 Primary acknowledgment of ownership

Oark acknowledges and agrees that, as between the Parties:

1. the Licensor is the sole legal and beneficial owner of the Owner Assets;
2. Oark has no ownership, equity, lien, security, beneficial interest, residual right, or reversionary interest in any Owner Asset;
3. possession, access, payment of an expense, receipt of revenue, use of an Oark email address, naming Oark on a website or receipt, or storage in an Oark-labelled account does not by itself vest an Owner Asset in Oark; and
4. Oark's only rights in the Owner Assets are the express contractual rights in this Agreement.

3.2 Express exclusion of deemed transfer under section 31

For purposes of section 31(1) of the Copyright Act, 2001, and any analogous rule:

1. the Parties expressly agree that no copyright or other right in an Owner Asset is or will be deemed transferred to Oark because of commission, employment, payment, direction, office, or use;
2. an Improvement created by the Licensor remains his personal property whether he creates it independently or while acting as Oark's director, employee, officer, consultant, or contractor, and whether he uses personal or Oark-provided time, equipment, accounts, facilities, or funds;
3. any salary, director's fee, reimbursement, benefit, instruction, commission, or other payment by Oark does not transfer an Improvement or alter this express agreement unless a later written assignment identifies the affected right and expressly overrides this clause; and
4. all economic rights in an Improvement created by the Licensor remain with the Licensor from creation, and this clause is an agreement excluding or limiting any deemed transfer to Oark under section 31(1) of the Copyright Act, 2001.

3.3 Moral rights

The Licensor retains all moral rights to the extent recognised by law. Oark shall identify the Licensor as author or owner where reasonably directed and shall not subject a work to derogatory treatment prejudicial to the Licensor's honour or reputation.

3.4 Brand goodwill

All goodwill arising from Oark's authorised use of a Licensed Mark accrues exclusively to the benefit of the Licensor. Oark shall not register or apply to register a Licensed Mark, confusingly similar mark, domain, company name, business name, social handle, or app-store name in its own name or another person's name.

3.5 No estoppel from prior statements

Oark withdraws, as between the Parties, any prior statement that Oark **owns** a Product or Owner Asset. Oark shall amend affected public-facing notices at the next practicable update and no later than the next material Product release or 90 days after the Effective Date, whichever occurs first, to state in substance:

> "[Product] is operated by Oark Limited under licence from Charles Njogu Kabui. Copyright in original proprietary components is retained by Charles Njogu Kabui. Third-party components and copies validly released under existing GPLv3, MIT, or other licences remain subject to those terms."

The correction of an ownership statement does not alter Oark's role as supplier, merchant, contracting party, or data controller where Oark in fact performs that role.

At the next material Blober release, Oark shall identify Charles Njogu Kabui rather than "Blober Team" as the author of original Blober material in current package metadata. Oark shall preserve historical release evidence and shall not imply that an existing valid MIT grant has been revoked.

3.6 Comprehensive reservation

Every right not expressly granted to Oark is reserved to the Licensor. No right arises by implication, estoppel, exhaustion beyond mandatory law, course of dealing, necessity, or otherwise.

3.7 Confirmatory disclaimer and quitclaim

Oark irrevocably disclaims and quitclaims in favour of the Licensor every claim of ownership in an Owner Asset that Oark does not legally own. This clause confirms the Parties' primary position and is not an admission that Oark ever acquired an Owner Asset.

3.8 Contingent confirmatory assignment

If, contrary to clauses 3.1 to 3.7, a court, tribunal, registrar, or other competent authority determines that any Intellectual Property Right in material identified as an Owner Asset vested in Oark before the Effective Date, Oark assigns that right to the Licensor with full title guarantee, to the fullest extent legally assignable, together with rights of action for past infringement.

The composite consideration for that contingent assignment is:

1. the historic royalty release in clause 2.3;
2. the worldwide royalty-free commercial Licence granted to Oark;
3. Oark's right to retain all Product revenue subject to its own costs and liabilities;
4. Oark's assumption of customer, tax, support, data-protection, and operating responsibilities; and
5. Oark's avoidance of an acquisition price for the Owner Assets.

The Parties record that the contingent assignment is precautionary, that they believe Oark presently owns no such right, and that Oark enters the overall arrangement in good faith for carrying on its business and on reasonable grounds that it benefits Oark.

3.9 Recordal and further assurance for any assignment

If clause 3.8 applies or could reasonably be required for title assurance:

1. the Parties shall promptly execute a separate confirmatory assignment identifying the affected work in sufficient detail;
2. Oark shall obtain any member approval required for a substantial non-cash asset transaction;
3. the assignment shall be lodged with the Kenya Copyright Board and recorded as required by section 33(3A) of the Copyright Act, 2001; and
4. until completion, Oark shall not sell, charge, assign, license, or otherwise deal with the affected right except under this Agreement.

3.10 No transfer of Company Materials

Clauses 3.7 to 3.9 do not assign or transfer Company Materials, Personal Data, customer contracts, receivables, customer goodwill attributable to Oark's performance as merchant, or any third-party right.

4. LICENCE GRANT

4.1 Grant

Subject to Oark's continuing compliance, the Licensor grants Oark a non-exclusive, non-transferable, non-assignable, non-sublicensable except under clause 4.3, restricted, terminable licence in the Territory during the Term to:

1. market and promote each Product under its applicable Licensed Marks;
2. host, operate, reproduce, and display ToKnow for public publishing and lawful monetisation;
3. reproduce, build, sign, distribute, and make available Blober in object-code form to End Users;

4. provide support and updates to End Users while Oark remains licensed to the relevant version; and
5. use Owner Infrastructure only to the extent and through the access method expressly approved by the Licensor.

4.2 Separate Products and accounting

The Licence applies to Blober and ToKnow separately. Oark need not prepare a separate royalty account, statement, or invoice for either Product. It shall keep only the sales and other records required by applicable law or reasonably needed to operate the Products. A breach affecting one Product does not automatically expand Oark's rights in the other, and the Licensor may suspend or terminate rights for one Product without terminating the other where the notice expressly says so.

4.3 End-User sublicences

Oark may grant an End User a non-exclusive, non-transferable right to use an authorised object-code release of Blober or access ToKnow content under customer terms that:

1. are consistent with this Agreement and applicable consumer law;
2. identify Oark as the supplier and merchant responsible for the customer contract;
3. do not grant Source Code, ownership, redistribution, resale, white-label, OEM, service-bureau, or sublicensing rights;
4. preserve Third-Party Materials notices and terms;
5. do not promise a right or service Oark is unable lawfully to provide; and
6. do not claim that Oark or the End User owns the Owner Assets and do not restrict the Licensor's reserved rights.

No separate Licensor approval is required for ordinary customer-term, price, refund, privacy, or support updates that remain within this clause. Oark may not appoint a distributor, reseller, OEM partner, white-label partner, or sub-licensor, or grant Source Code or redistribution rights, without a separate written approval signed by the Licensor.

4.4 No exclusivity and no protected market

The Licence is strictly non-exclusive. During and after the Term, the Licensor may, without notice, accounting, consent, or liability to Oark:

1. use and exploit the Owner Assets anywhere;
2. compete with Oark;
3. establish or assist another company in any jurisdiction;
4. grant identical, overlapping, broader, exclusive, or non-exclusive rights to any person;
5. sell or assign an Owner Asset, subject to rights that mandatory law makes binding on a successor; and
6. terminate this Licence in accordance with clause 13 before granting rights inconsistent with its continuation.

Oark has no right of first refusal, first offer, matching right, exclusivity, non-compete protection, or entitlement to revenue generated by the Licensor or another licensee.

4.5 No Source Code ownership or general possession right

The Licence does not grant ownership of Source Code or a general right to possess, copy, export, escrow, disclose, or retain Source Code. Any repository access is limited, personal to authorised Oark personnel, revocable, and solely for the licensed operation. Access credentials are not evidence of title.

4.6 Statutory software exceptions

Nothing in this Agreement excludes an act that section 26A of the Copyright Act, 2001, or another mandatory law permits and does not allow the Parties to prohibit. Any copy lawfully made under such an exception shall be used only for the permitted purpose and destroyed when lawful possession ends, as applicable.

4.7 No agency to bind the Licensor

Oark contracts with customers as principal and not as agent for the Licensor. Oark has no authority to make a warranty, representation, admission, settlement, regulatory filing, or commitment in the Licensor's name or to bind the Licensor to a customer, vendor, regulator, or other person.

5. OWNER INFRASTRUCTURE, CUSTODY, AND CONTROL

5.1 Identified infrastructure only

Owner Infrastructure is limited to the assets expressly identified in Schedule 3. An asset is not Owner Infrastructure merely because it supports a Product.

5.2 Administrative account identifiers

Where Owner Infrastructure is held in an account whose login, recovery address, billing profile, display name, or contact uses oarklimited@gmail.com or Oark's name:

1. Oark acknowledges that the identifier was used for administrative convenience;
2. as between the Parties, Oark acts only as custodian and nominee for the Licensor in relation to the identified Owner Infrastructure;
3. Oark shall follow the Licensor's lawful written directions concerning the identified asset;
4. Oark shall not change recovery details, multi-factor authentication, registrant information, administrator roles, billing, transfer locks, or credentials without the Licensor's written approval; and
5. Oark shall give the Licensor current access and information reasonably necessary to protect the asset.

5.3 Provider terms and third-party rights

This Agreement binds the Parties, not a registrar, cloud provider, source-control provider, app store, payment processor, or other third party. If a provider's records or terms recognise Oark as account holder, the Licensor may face practical or legal risk despite this clause. Oark shall sign and submit any lawful provider form reasonably required to record the Licensor's ownership or control.

5.4 Company infrastructure and funds

Oark owns or controls its Company Materials. In particular, money collected into an Oark bank or merchant account remains Oark's money subject to Oark's customer, tax, payment-processor, creditor, and contractual obligations.

5.5 No charge or encumbrance

Oark shall not pledge, charge, register a security over, grant an option over, or represent that a creditor may rely on an Owner Asset as Oark collateral. Oark shall provide this Agreement and the relevant ownership evidence to a proposed secured creditor before giving security over a business or asset pool that could otherwise appear to include an Owner Asset.

6. RESTRICTIONS AND PROTECTIVE COVENANTS

Oark shall not, and shall not permit another person to:

1. claim, register, or represent ownership of an Owner Asset;
2. assign, transfer, novate, mortgage, charge, pledge, sublicense, lend, lease, sell, distribute, or otherwise dispose of the Licence or an Owner Asset except as expressly allowed for End Users;
3. disclose or provide Source Code or Confidential Owner Material to an End User, creditor, investor, acquirer, affiliate, contractor, or other person without the Licensor's prior written consent;
4. remove, obscure, or alter an ownership, copyright, trade mark, rights-management, attribution, or Third-Party Materials notice;
5. use a Licensed Mark outside the applicable Product or contrary to the Licensor's quality standards;

6. challenge, assist a challenge to, or knowingly impair the Licensor's ownership or validity of an Owner Asset;
7. combine Owner Assets with material whose licence would require disclosure, licensing, or distribution of proprietary Owner Assets on terms not approved in writing by the Licensor;
8. use a Product unlawfully, deceptively, or in a manner reasonably likely to expose the Licensor to regulatory, security, consumer, sanctions, data-protection, or infringement liability;
9. make a false or misleading statement to a customer about lifetime availability, future updates, security, privacy, provider approval, legal compliance, ownership, or a feature; or
10. use ToKnow data, articles, or analysis in a way that violates a third party's copyright, database right, terms, confidentiality, privacy, or other rights.

7. IMPROVEMENTS, CONTRIBUTORS, AND DEVELOPMENT FUNDING

7.1 Development by the Licensor

The Licensor may continue developing the Products personally or while performing duties for Oark. Oark may pay salary, director remuneration, reimbursements, or Product operating and development costs only under a separate lawful approval or arrangement. No such work or payment changes ownership under clause 3.2 unless the Parties execute an express written assignment of identified rights.

7.2 No authority to create Company-owned Improvements

Oark shall not instruct an employee, contractor, agency, volunteer, or other person to create an Improvement for integration into a Product without the Licensor's prior written approval.

7.3 Mandatory contributor assignment before use

If a person other than the Licensor creates or may create an Improvement, Oark shall, before the Improvement is accessed, merged, deployed, distributed, or paid for:

1. disclose the contributor and all applicable terms to the Licensor;
2. procure a written assignment directly to the Licensor of all assignable Intellectual Property Rights, including future rights where lawful;
3. procure appropriate confidentiality, moral-rights consent, warranty, and further-assurance terms;
4. pay all contributor charges unless the Licensor agrees otherwise; and
5. complete any recordal required by section 33(3A) of the Copyright Act, 2001.

Oark receives no Licence to an unapproved Improvement and bears all risk arising from its use.

7.4 No "work for hire" shortcut

The Parties do not rely on the phrase "work for hire" as a substitute for Kenyan ownership and assignment formalities. Ownership is determined by applicable law and an effective written agreement and recordal where required.

7.5 AI-assisted material

AI-assisted material is an Owner Asset only to the extent that the Licensor has rights to it under applicable law and provider terms. Third-party training data, model weights, generated material lacking protectable authorship, and material subject to conflicting terms are excluded. Oark shall not make an unqualified representation that all AI-assisted material is exclusively owned.

8. THIRD-PARTY MATERIALS AND EXISTING OPEN LICENCES

8.1 No ownership claim over Third-Party Materials

The Licensor does not claim ownership of Third-Party Materials. Each such item remains subject to its own terms, notices, conditions, and attribution requirements.

8.2 Compliance responsibility

Oark shall comply with all Third-Party Materials terms applicable to Oark's distribution, hosting, or commercial use. Oark shall maintain and provide required notices, source offers, attribution, licence texts, and relinking or replacement rights.

8.3 Known reciprocal components

Without limiting clause 8.2, the Blober production dependency inventory reviewed on 23 July 2026 included `openpgp` version 6.3.0 and `@protontech/openpgp` version 6.3.1-0 under LGPL-3.0+, and `dompurify` under a choice including MPL-2.0 or Apache-2.0. Oark shall obtain specific compliance advice for distributed builds and shall not describe every component as proprietary or MIT-licensed.

8.4 Existing grants are not revoked

Nothing in this Agreement revokes or restricts a right already granted to a third party under an Existing Open Licence or valid customer licence. Ownership of copyright and the existence of a licence are distinct: the Licensor may retain copyright while a recipient retains valid GPL, MIT, LGPL, or other licensed rights in a particular copy.

8.5 Prospective proprietary releases

Subject to Third-Party Materials terms and Existing Downstream Rights, the Licensor may designate an original future version as proprietary. Oark shall not remove a licence from an existing copy or imply that a prior open-source grant has been revoked. Oark shall apply the licence notice supplied by the Licensor to each future release.

8.6 No blanket non-infringement representation

The dependency review described in this Agreement is not an exhaustive legal clearance. Oark shall not tell a customer, investor, regulator, or other person that all packages, integrations, datasets, captured API responses, or content have been conclusively cleared unless competent counsel has verified that statement.

9. ROYALTY-FREE LICENCE, TAX, AND RECORDS

9.1 No royalty or licence fee

The Licence is granted without a royalty, minimum payment, or other licence fee. No amount becomes payable merely because Oark receives Product revenue, and the Licensor is not entitled to a share of that revenue under this Agreement.

9.2 No recurring licence administration

Solely for this Agreement, neither Party is required to prepare or issue:

1. a monthly or nil Product statement;
2. a royalty calculation or reconciliation;
3. a licence invoice or eTIMS invoice from the Licensor to Oark;
4. a royalty withholding-tax return or certificate; or
5. a royalty audit.

This clause does not remove a record, invoice, return, or payment independently required by tax, company, consumer, employment, or another applicable law.

9.3 No tax representation

The Parties do not represent that a royalty-free related-party licence produces a particular tax result, establishes an arm's-length price, or prevents an adjustment under sections 18A or 23 of the Income Tax Act or another mandatory rule. If mandatory law requires a payment, withholding, invoice, valuation, or adjustment, the Parties shall comply prospectively and document it separately; no tax amount is created merely by this clause.

9.4 Each Party's taxes

Oark is responsible for taxes, duties, levies, invoices, returns, and records arising from its sales, payroll, dividends, payments, and commercial operation. The Licensor is responsible for his own tax obligations. Nothing in this Agreement authorises either Party to treat Company money as the Licensor's personal money or to disguise salary, a dividend, a benefit, or another payment as a royalty-free licence transaction.

9.5 Records

Each Party shall keep this Agreement and the evidence reasonably necessary to identify Owner Assets and Company Materials. Oark shall keep its ordinary business and tax records for the period required by law. This Agreement creates no additional retention period, separate Product ledger, or recurring internal report.

10. CUSTOMER CONTRACTS AND CONSUMER RIGHTS

10.1 Oark remains supplier

Oark is solely responsible for customer contracting, disclosures, billing, delivery, support, refunds, consumer remedies, taxes, and representations made by or for Oark.

10.2 Mandatory rights preserved

No Product term may exclude or restrict a non-waivable consumer right, including rights under the Consumer Protection Act, 2012. An "as is" statement does not negate the statutory warranty of reasonably merchantable quality or another mandatory condition.

10.3 Internet agreements

Before an online sale, Oark shall provide the prescribed disclosures, an express opportunity to accept or decline and correct errors, and information the customer can retain and print. Oark shall deliver a written copy of the customer agreement within the prescribed period.

10.4 Existing lifetime customer licences

Termination of this Agreement does not itself cancel a valid Existing Downstream Right. Oark remains liable for promises it made, including any valid lifetime-use, refund, support, or update promise, subject to its customer terms and mandatory law.

10.5 Run-off licence after termination

After termination, Oark has a limited, non-exclusive, non-transferable run-off licence solely to permit existing End Users to continue using the object-code version validly supplied before termination and to provide legally required support. The run-off licence:

1. permits no new customer, sale, renewal, upsell, release, feature, or distribution;
2. permits no Source Code disclosure;
3. permits only the minimum Licensed Mark use needed to identify existing support;
4. ends for an End User when that End User's valid right ends; and
5. remains subject to Oark's customer, tax, and record-keeping obligations.

The Licensor may, but is not required to, assume a customer contract. Assumption requires a separate lawful novation or consent and compliance with data-protection law.

11. PERSONAL DATA AND BUSINESS RECORDS

11.1 No ownership treatment of Personal Data

Personal Data is not an Owner Asset. Nothing in this Agreement treats customer or user Personal Data as property that automatically "reverts" to the Licensor.

11.2 Controller responsibilities

The Party that determines the purpose and means of processing is responsible as controller. Oark is the controller for Personal Data it collects as supplier, merchant, support provider, website operator, or employer unless a separate lawful arrangement establishes otherwise.

11.3 Processing by the Licensor

The Licensor shall not access or process Oark-controlled Personal Data except:

1. on documented instructions;
2. under a written controller-processor agreement meeting section 42 of the Data Protection Act, 2019;
3. for a lawful, specific, disclosed purpose; and
4. with appropriate security, retention, breach, data-subject-right, and cross-border-transfer safeguards.

11.4 Termination and data transfer

Termination does not transfer Oark's customer list, chat exports, transaction records, analytics identifiers, or other Personal Data to the Licensor or a replacement operator. Any transfer requires an identified lawful basis, required notices or consent, data minimisation, security, and safeguards for a transfer outside Kenya.

11.5 Repository data

Oark shall not place live Personal Data, transaction exports, support chats, identity documents, credentials, or customer receipts in a source repository except under a documented lawful necessity and appropriate access, encryption, retention, and deletion controls. A Git deletion that leaves the data in history is not sufficient remediation.

11.6 Breaches

Each Party shall immediately notify the other of an actual or suspected Personal Data breach affecting a Product and cooperate with legally required notifications. This clause does not extend a statutory deadline.

12. WARRANTIES, ACKNOWLEDGMENTS, AND COMPANY COVENANTS

12.1 Licensor warranties

The Licensor warrants, as at signing and to his knowledge after reasonable inquiry, that:

1. he personally created the original Owner Assets identified in the Schedules except for disclosed Third-Party Materials;
2. he has not knowingly assigned the Owner Assets to Oark or another person;
3. he used personal time and resources and is not aware of an employer or other person asserting a present ownership claim;
4. he has authority to grant the Licence; and
5. he has disclosed the known Existing Open Licences and material ownership qualifications identified in the Schedules.

The warranty is not a representation that every Third-Party Material, data source, API method, AI-assisted output, or integration has received a complete legal clearance.

The warranty is expressly subject to the unresolved Microsoft-employment qualification in Schedule 2. The Licensor shall not sign this Agreement until he has reviewed the applicable employment IP and outside-work terms and can truthfully give the warranties above. This Agreement does not determine or waive a superior right held by Microsoft or another non-party.

12.2 Oark warranties and acknowledgments

Oark warrants and acknowledges, as at signing, that:

1. it is duly incorporated and has authority to enter this Agreement;
2. Charles is its sole director and sole beneficial owner of its issued shares, based on the supplied official search and the Parties' representation;
3. it has disclosed the director's direct financial interest and made the related corporate records and approvals;
4. it is able to pay its debts as they fall due, has no undisclosed Insolvency Event, and is not entering this Agreement to put assets beyond creditors;
5. it has no employee, secured creditor, investor, or contractor with a disclosed claim to an Owner Asset;
6. it has had the opportunity to obtain independent legal, tax, insolvency, accounting, and valuation advice;
7. it considers in good faith that the royalty-free Licence, historic release, right to retain Product revenue, continued access to Improvements, and avoidance of an acquisition price benefit Oark;
8. no representation has been made that this Agreement can bind a creditor, court, regulator, insolvency office-holder, customer, or infrastructure provider that is not a Party; and
9. no wording can prevent a competent authority from determining the true owner of an asset or exercising mandatory statutory powers.

12.3 Ongoing solvency and conflict record

Oark shall not cause an assignment, access change, or other transfer under this Agreement at a time when it is unable to pay debts or would become unable to pay debts as a consequence without first obtaining specific Kenyan insolvency advice and any required approval.

12.4 No other warranties

Except for express warranties and mandatory law, the Owner Assets are licensed as available. The Licensor does not warrant uninterrupted operation, fitness for a particular purpose, compatibility with a third-party service, continued API availability, or that an unofficial or reverse-engineered integration will continue to work.

13. TERM, SUSPENSION, AND TERMINATION

13.1 Term

The Term begins on the Effective Date and continues until terminated under this clause. The duration is expressly specified by these continuing and termination provisions and is not an unspecified licence period for purposes of section 33(7) of the Copyright Act, 2001.

13.2 Licensor termination without cause

The Licensor may terminate the Licence for either or both Products without cause on thirty days' written notice.

13.3 Licensee termination

Oark may terminate the Licence for either or both Products on thirty days' written notice. Accrued obligations and customer liabilities remain.

13.4 Immediate termination by notice

The Licensor may terminate the affected Licence immediately by written notice if Oark:

1. claims ownership of, assigns, charges, pledges, sells, or grants unauthorised rights in an Owner Asset;
2. discloses Source Code or Confidential Owner Material without authority;
3. intentionally removes ownership or Third-Party Materials notices;
4. uses an Owner Asset after a lawful prohibition or order;
5. commits fraud, deliberate infringement, deliberate data misuse, or a material criminal act relating to a Product; or

6. undergoes a change of control without the Licensor's prior written consent.

13.5 Termination after cure period

For another material breach, the non-breaching Party may terminate the affected Licence if the breach is not cured within ten Business Days after a notice describing it in reasonable detail. A payment breach has a five-Business-Day cure period after notice.

13.6 Insolvency

To the fullest extent permitted by mandatory law, the Licensor may terminate or suspend the Licence immediately by notice on an Insolvency Event. Nothing in this clause:

1. determines whether an ipso facto termination is enforceable in every insolvency circumstance;
2. prevents an administrator, liquidator, or court from exercising a mandatory power;
3. removes Oark's own contractual rights, receivables, or Company Materials from its estate; or
4. converts an Oark-owned asset into a Licensor-owned asset.

13.7 Protective suspension

The Licensor may immediately suspend access or distribution only to the extent reasonably necessary to address a credible security incident, unauthorised disclosure, infringement allegation, regulatory order, data breach, or imminent material harm. The Licensor shall give prompt reasons and restore unaffected rights when the risk is adequately resolved.

13.8 Mere claim or audit is not automatic termination

A threat of litigation, tax inquiry, customer complaint, regulatory audit, or claim against Oark does not by itself automatically terminate this Agreement. The Licensor may use clause 13.7 where the matter creates a credible risk to an Owner Asset or the Licensor.

14. CONSEQUENCES OF TERMINATION

14.1 Immediate cessation

On termination for a Product, Oark shall immediately cease all use except the run-off licence in clause 10.5 and shall:

1. stop new sales, marketing, sublicensing, builds, releases, and deployments;
2. remove statements implying current authority or ownership;
3. disable Oark personnel's access to Confidential Owner Material and Owner Infrastructure;
4. return or securely destroy Confidential Owner Material in its possession, subject to one encrypted legal archive copy retained only where required by law;
5. pay any non-royalty amount that has separately accrued under this Agreement;
6. provide an access, credential, repository, build, release, domain, and infrastructure inventory;
7. preserve Company Materials and customer records as required by law; and
8. certify compliance in writing within ten Business Days.

14.2 No "reversion" fiction

Owner Assets do not revert on termination because they were not transferred to Oark. Oark's limited contractual permission ends, subject to Existing Downstream Rights and mandatory law.

14.3 No automatic customer-data or contract transfer

No customer contract, receivable, bank balance, merchant account, Personal Data, or Company Material passes to the Licensor on termination. A separate lawful transfer is required.

14.4 Survival

Clauses concerning ownership, confidentiality, Third-Party Materials, customers, Personal Data, indemnity, liability, dispute resolution, and provisions intended by nature to survive remain in force.

15. INSOLVENCY AND CREDITOR POSITION

15.1 Intended property boundary

The Parties intend and record that Owner Assets are not Oark property and therefore should not form part of Oark's insolvency estate. Oark's Licence, receivables, Company Materials, contractual claims, and other Oark-owned assets may form part of its estate.

15.2 Evidence, not conclusive declaration against third parties

This Agreement is evidence of the Parties' rights. It does not conclusively bind a non-party creditor or office-holder, prevent attachment of property actually owned by Oark, or displace sections 429, 443 to 445, 476, 581, 584, 682 to 685, or another mandatory provision of the Insolvency Act, 2015.

15.3 Cooperation with office-holder

Oark shall keep ownership records sufficient to distinguish Owner Assets. On an Insolvency Event, Oark shall promptly give the relevant office-holder this Agreement, the corporate approval record, Schedules, provenance records, and evidence of the separate ownership and accounts.

15.4 No transaction at undervalue or preference intended

The Parties state that they do not intend a gift, preference, sham, concealment, or transaction at an undervalue. They record the commercial consideration in clause 3.8 and shall maintain evidence that Oark entered the arrangement in good faith for carrying on its business and reasonably believed it would benefit Oark.

15.5 Statutory clawback risk preserved

The Parties acknowledge that a court may set aside a transaction at an undervalue or certain preferences at a relevant time, including within a two-year connected-person lookback where statutory conditions are met. No waiver, indemnity, choice of law, automatic termination, or label in this Agreement removes that jurisdiction.

16. INDEMNITIES AND LIABILITY

16.1 Oark indemnity

Subject to mandatory law, Oark shall indemnify the Licensor against third-party claims, direct loss, penalties, reasonable legal costs, and liabilities arising from:

1. Oark's customer contracts, sales, marketing, representations, refunds, support, or failure to deliver;
2. Oark's unlawful, unauthorised, or negligent operation of a Product;
3. Oark's processing, disclosure, loss, or transfer of Personal Data;
4. Oark's failure to comply with tax, eTIMS, withholding, consumer, sanctions, export, platform, or regulatory duties;
5. an unauthorised ownership claim, assignment, charge, sublicense, distribution, or Source Code disclosure;
6. Oark's modification or combination of Owner Assets with unapproved material; or
7. Oark's breach of this Agreement.

The indemnity does not cover loss caused by the Licensor's fraud or wilful misconduct.

16.2 Licensor indemnity

The Licensor shall indemnify Oark against a final third-party judgment that Oark's authorised use of original Owner Assets, unmodified and used strictly under this Agreement, infringed that third party's copyright solely because the Licensor breached clause 12.1. This indemnity excludes Third-Party Materials, Oark modifications, combinations, continued use after notice, customer content, data, and use outside scope.

16.3 Mitigation and control

The indemnified Party shall give prompt notice, allow the indemnifying Party reasonable control of defence and settlement, provide cooperation, and mitigate loss. No settlement may admit fault or impose a non-monetary obligation on the indemnified Party without its consent.

16.4 Licensor liability cap

Except for the Licensor's fraud, wilful misconduct, or liability that law does not allow to be limited, the Licensor's aggregate liability to Oark arising from both Products in any twelve-month period shall not exceed KES 100,000.

16.5 Excluded loss

To the extent lawful, the Licensor is not liable to Oark for indirect, special, punitive, or consequential loss, loss of profit, loss of opportunity, loss of anticipated savings, loss of goodwill, or loss of data. This does not limit a third-party indemnity expressly given in clause 16.2 or a mandatory consumer right owed by Oark to its customer.

17. CONFIDENTIALITY AND PUBLIC STATEMENTS

17.1 Confidentiality

Oark shall protect Confidential Owner Material using at least the care it uses for its most sensitive information and no less than reasonable care. It shall disclose it only to a specifically authorised person who needs it for licensed operation and is bound by written obligations at least as protective.

17.2 Compelled disclosure

If disclosure is legally compelled, Oark shall, where lawful, give the Licensor prompt notice, disclose only what is required, seek confidential treatment, and preserve legal privilege.

17.3 Public statements

Oark may accurately state that it is the authorised operator and commercial licensee for the applicable Product. It may not state that it owns the Owner Assets or that the arrangement is creditor-proof, tax-approved, court-approved, or legally "airtight."

18. GOVERNING LAW AND DISPUTE RESOLUTION

18.1 Governing law

This Agreement and non-contractual obligations arising from it are governed by the laws of Kenya.

18.2 Good-faith escalation

Before arbitration, a Party shall give a detailed dispute notice. The Parties shall attempt in good faith to resolve the dispute for ten Business Days, unless urgent relief is required.

18.3 NCIA arbitration

Subject to clauses 18.4 and 18.5, a dispute arising out of or in connection with this Agreement, including its existence, validity, interpretation, performance, breach, or termination, shall be finally resolved by arbitration administered by the Nairobi Centre for International Arbitration under the NCIA Rules in force when the arbitration begins.

1. The seat is Nairobi, Kenya.
2. The tribunal consists of one arbitrator.
3. The language is English.
4. The award shall give reasons.
5. The tribunal may order injunctive relief, preservation of Source Code or evidence, account of profits, specific performance, delivery up, and costs to the extent lawful.

18.4 Court and statutory relief

Nothing prevents a Party from seeking an interim measure from the High Court under section 7 of the Arbitration Act, 1995, enforcing an award, applying on a matter reserved to the High Court, reporting a crime or regulatory matter, or invoking a statutory remedy that cannot lawfully be excluded.

18.5 Non-arbitrable and third-party matters

The arbitration clause does not bind a customer, creditor, regulator, tax authority, insolvency office-holder, infrastructure provider, or other non-party. It does not cover a matter not capable of arbitration under Kenyan law. Consumer claims remain subject to section 88 of the Consumer Protection Act, 2012.

18.6 Confidentiality of dispute

The Parties shall keep the arbitration, evidence, submissions, and award confidential except to protect or enforce a right, comply with law, obtain professional advice, report to an insurer, or make a required regulatory, tax, or court disclosure. A court filing may become public notwithstanding this clause.

19. GENERAL

19.1 Corporate approvals and records

Oark shall keep with its statutory records:

1. the director's written conflict disclosure and decision record;
2. the sole-member consent and approval;
3. this Agreement and Schedules;
4. evidence supporting the commercial rationale and solvency statement; and
5. any valuation, tax, stamp-duty, KECOBO, KIPI, or professional advice.

19.2 Assignment

Oark may not assign, transfer, charge, declare a trust over, novate, or otherwise deal with this Agreement or the Licence. The Licensor may assign an Owner Asset or this Agreement, but shall not misrepresent or unlawfully impair an Existing Downstream Right.

19.3 Change of control

A direct or indirect change in ownership or control of Oark is deemed an attempted transfer requiring the Licensor's prior written consent.

19.4 Notices

Contractual notices shall be sent to the addresses and emails in the Parties section, or a replacement notified in writing. Email notices shall use the subject `FORMAL NOTICE – OARK IP LICENCE`, attach or reproduce the notice, and be retained with full headers. A notice is received when acknowledged by the recipient, when the recipient acts on it, or as otherwise established under applicable law. A Party shall not unreasonably withhold a requested acknowledgment.

For arbitration communications, section 9 of the Arbitration Act, 1995, applies. Service of court process is governed by applicable procedural law and is not conclusively effected by this clause.

19.5 Record copy and optional electronic evidence

Oark shall retain a complete executed copy with its statutory records. The Parties may also preserve a hash, native email, timestamp, or document-signing validation report, but this Agreement requires no email exchange between accounts controlled by the same person. Optional electronic evidence does not replace signatures, witness attestation, corporate approval, tax compliance, or stamp duty.

19.6 Entire agreement and non-reliance

This Agreement and the contemporaneous corporate approval record contain the entire agreement about their subject. Each Party acknowledges it has not relied on a statement not set out here, except that this clause does not exclude fraud or a liability that cannot lawfully be excluded.

19.7 Amendments and waivers

An amendment or waiver is effective only in a written instrument signed by the Licensor and validly executed by Oark with the required conflict disclosure and approval. A delay is not a waiver. A waiver on one occasion is not a continuing waiver.

19.8 Severability and lawful reformation

If a provision is invalid, illegal, or unenforceable, it is severed only to the minimum extent necessary. The remaining provisions continue. The Parties shall replace it with a lawful provision that most closely preserves the legitimate commercial purpose without defeating mandatory law or creditor, customer, data-subject, tax, or regulatory rights.

19.9 No partnership, employment, or fiduciary relationship

Nothing creates a partnership, joint venture, employment, franchise, fiduciary relationship, or general agency between the Parties. This does not remove duties Charles separately owes as Oark's director.

19.10 Costs

Oark shall pay reasonable costs of corporate approvals, KRA stamp-duty adjudication and stamping, and compliance caused by its commercial operation. Each Party pays for its own independent legal and tax advice.

19.11 Counterparts and electronic records

This Agreement may be executed in counterparts. A counterpart is effective only if executed in a manner recognised by law. An advanced electronic signature may be used where it satisfies the Kenya Information and Communications Act. A pasted image, typed name, or ordinary email footer should not be relied on as the sole method where law requires a signature.

19.12 Further assurance

Each Party shall promptly sign and deliver a lawful document reasonably necessary to give effect to the ownership boundary and Licence, including a KECOBO recordal, KIPI filing, provider ownership form, correction notice, or confirmatory assignment, provided it does not expand the Licence or transfer Company Materials without separate agreement.

19.13 No third-party enforcement

Except for rights expressly preserved for an End User under clause 10, a person that is not a Party has no contractual right to enforce this Agreement.

SCHEDULE 1 - PRODUCT A: BLOBER

1. Identity and provenance

1. Product: Blober / blober.io.
2. Function: desktop and related software for transferring and managing files across storage providers, together with its web presence and documentation.
3. Creation began: approximately 20 September 2025.
4. First identified repository commit: `ab9d596c51ec72c057c917c18e7bf2983a8357fe`, authored by Kabue Charles using mckabue@gmail.com on 20 September 2025.
5. Repository reviewed: `https://github.com/blober-io/blober.io`, controlled through the Licensor's personal GitHub identity `https://github.com/mckabue`; the repository returned 404 to a logged-out reviewer on 23 July 2026 and appeared non-public.
6. Reviewed repository state: commit `0ab02aa1b0629cbe326c1ea7bbd280088acd57cb` dated 23 July 2026, subject to confirmation from the repository or optional evidence record if later relied on.
7. The Git author audit identified only Charles under spelling variants Kabue/Kabui as human author. Some commits identify GitHub Copilot as co-author; AI-assisted material is governed by clause 7.5.

2. Original Owner Assets

Subject to the exclusions below, the Blober Owner Assets include original:

1. Source Code, object code, architecture, schemas, workflows, adapters, tests, build and release scripts;
2. user interface and original visual design;
3. product documentation, knowledge-base material, product copy, and original diagrams;
4. Blober Brand Assets;
5. release signing material owned personally by the Licensor;
6. the personally authored submodules `no-same-type-params`, `react-use-async`, and `react-validate`, subject to their published licences; and
7. Improvements personally created by the Licensor after the Effective Date.

3. Known exclusions and qualifications

The following are not exclusively owned proprietary Blober assets:

1. all packages and transitive dependencies in `pnpm-lock.yaml` and package manifests;
2. Third-Party Materials under MIT, Apache-2.0, BSD, ISC, LGPL-3.0+, MPL-2.0, Python-2.0, Unlicense, and other terms;
3. provider APIs, SDKs, brands, documentation, response captures, and services, including Amazon, Microsoft Azure, Google, GoPro, Proton, Dropbox, Cloudinary, Cloudflare, Backblaze, Wasabi, Paystack, Tawk.to, and PostHog material;
4. captured or reverse-engineered API material and discovery JSON containing third-party code or responses;
5. customer identities, transaction exports, chat exports, user records, receipts, and support records, including material tracked under `shared/customer/`;
6. Oark bank, Paystack, merchant, analytics, support, and customer accounts;

7. customer feedback and testimonials owned by their authors or otherwise used with permission; and
8. any material in which an employer, AI provider, customer, or other third party establishes rights.

4. Existing rights

1. Blober customer terms reviewed on 23 July 2026 grant purchasers a limited, non-exclusive, non-transferable lifetime licence and promise future updates. Those promises remain Oark responsibilities subject to law and the terms actually accepted.
2. Distributed release metadata for version 0.7.22 described Blober as MIT-licensed and listed the author as "Blober Team." To the extent a recipient validly received an MIT licence in original Blober material, that recipient's rights are preserved.
3. Future proprietary designation does not revoke an existing valid grant.

SCHEDULE 2 - PRODUCT B: TOKNOW

1. Identity and provenance

1. Product: ToKnow / toknow.ai.
2. Function: a publishing and research website for articles, analysis, data, software demonstrations, and related content. It is separate from Blober.
3. Creation began: approximately 4 May 2024.
4. First identified commit: `4f8bd2f6e7d50c5a4ff564ead857695b13e3b1af`, authored as Charles Kabui using charleskabui@microsoft.com on 4 May 2024. The Licensor represents that the email address was an author identifier only and that the work was created on personal time and resources. Review of the applicable employment IP and outside-work terms is required before execution.
5. Source repository reviewed: `https://github.com/ToKnow-ai/ToKnow.ai`; it returned 404 to a logged-out reviewer on 23 July 2026 and appeared non-public.
6. Reviewed repository state: commit `86332660347a7094185fdd8bfb3b99be5137b934` dated 23 July 2026, subject to confirmation from the repository or optional evidence record if later relied on.
7. Live site reviewed: `https://toknow.ai/`.

2. Original Owner Assets

Subject to the exclusions below, the ToKnow Owner Assets include original:

1. site Source Code, build configuration, scripts, templates, original layout, and original software tools;
2. articles, original analysis, original selection and arrangement, and original datasets created by the Licensor;
3. original graphics, charts, and documentation created by the Licensor;
4. ToKnow Brand Assets; and
5. Improvements personally created by the Licensor after the Effective Date.

3. Known exclusions and qualifications

The following are not exclusively owned proprietary ToKnow assets:

1. facts, public-domain material, and ideas not protected by copyright;
2. source data, crawled data, third-party articles, quotations, images, marks, datasets, and other content belonging to their respective owners;
3. software packages, Quarto, themes, fonts, submodules, notebooks, templates, and other Third-Party Materials;
4. Creative Commons or other separately licensed material;
5. content submitted or authored by another person;
6. Personal Data and Oark Company Materials; and
7. any material in which an employer, AI provider, data source, or other third party establishes rights.

4. Existing open-source rights

1. A GPLv3 licence file has been in the ToKnow repository since 7 May 2024.
2. The live site publicly linked to `https://toknow.ai/LICENSE` on 23 July 2026.
3. To the extent original ToKnow code or another work was validly conveyed under GPLv3, recipients retain those GPLv3 rights.
4. The Licensor retains copyright and may dual-license original material he owns, but neither Party may revoke a valid GPLv3 grant in an existing copy.

SCHEDULE 3 - INFRASTRUCTURE AND ACCOUNT BOUNDARIES

1. Identified Owner Infrastructure

Asset	Administrative position at drafting	Position between the Parties
`blober.io` domain	Paid using Licensor's personal credit card; held in a Cloudflare account using oarklimited@gmail.com	Licensor-owned; Oark is custodian only
`toknow.ai` domain	Paid using Licensor's personal credit card; held in a Cloudflare account using oarklimited@gmail.com	Licensor-owned; Oark is custodian only
GitHub identity `mckabue`	Personal account using mckabue@gmail.com	Licensor-owned
GitHub organisations/repositories for Blober and ToKnow	Controlled through the Licensor's personal GitHub identity, subject to provider records	Licensor-owned original repository rights; third-party material excluded
Product source and release-signing keys personally generated and controlled by Licensor	May be itemised by fingerprint in the optional evidence record without exposing secrets	Licensor-owned

2. Company Materials and infrastructure

The following remain Oark Company Materials unless a separate written agreement lawfully provides otherwise:

1. Oark bank accounts and balances;
2. Paystack and other merchant or payment-processing contracts and balances;
3. Oark customer contracts, licence records, invoices, and receivables;
4. support-chat and analytics accounts opened by Oark as operator;
5. Oark tax, eTIMS, accounting, DUNS, statutory, and regulatory records; and
6. Personal Data for which Oark is controller.

3. Evidence record

The Schedules and existing source records are the initial ownership evidence. The Licensor may maintain a confidential evidence record, without publishing secrets, containing any of the following when reasonably useful for a dispute, registration, financing, sale, or provider change:

1. domain registrar records and payment evidence;
2. repository URLs, visibility, administrators, first commits, and current commit hashes;
3. release tags and hashes;
4. root and delegated infrastructure accounts;
5. code-signing keys by fingerprint only;
6. material third-party licences;
7. KECOBO and KIPI applications or registrations; and
8. the location of immutable evidence archives.

No separate signed manifest, fixed completion deadline, or recurring update is required solely by this Agreement.

SCHEDULE 4 - EXISTING DOWNSTREAM AND THIRD-PARTY RIGHTS

1. Existing Blober End-User licences validly granted before termination.
2. Any valid GPLv3 rights conveyed with ToKnow material before the Effective Date.
3. Any valid MIT rights conveyed with a Blober copy or submodule before the Effective Date.
4. LGPL-3.0+ rights and obligations for OpenPGP components.
5. All other third-party package, content, data, API, font, image, model, and service terms.
6. Mandatory statutory exceptions and customer rights.

No item in this Schedule transfers ownership to Oark. No item permits either Party to claim a third party's material as its own.

EXECUTION

The Parties intend to be legally bound on the date of the last valid signature, with commercial operation under this Agreement beginning on the Effective Date.

Signed by the Licensor in his personal capacity

Signature: ______________________________

Name: **Charles Njogu Kabui**

National ID No.: **29393333**

Date: ______________________________

In the presence of:

Witness signature: ______________________________

Witness full name: ______________________________

Witness ID/Passport No.: ______________________________

Witness physical address: ______________________________

Witness email/telephone: ______________________________

Date: ______________________________

Executed for and on behalf of Oark Limited

Signed separately in the Company capacity by its director in the presence of the witness below, for purposes of section 37(2)(b) of the Companies Act, 2015.

Director signature for Oark Limited: ____________________

Director name: **Charles Njogu Kabui**

Capacity: **Sole Director**

Company number: **PVT-AAADAM3**

Date: ______________________________

In the presence of:

Witness signature: ______________________________

Witness full name: ______________________________

Witness ID/Passport No.: ______________________________

Witness physical address: ______________________________

Witness email/telephone: ______________________________

Date: ______________________________

Schedule confirmation

Licensor initials: __________ Oark director initials: __________

Schedules 1 to 4 form part of this Agreement.